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California Lawmakers Advance Bill to Shield School Children From Harmful Food Dyes

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SACRAMENTO, California, June 27 -- The Environmental Working Group issued the following news release on June 26, 2024:

On June 26, the California Senate Education Committee voted to advance a bipartisan bill to ban six harmful dyes and titanium dioxide from food provided in the state's public schools during regular school hours.

Assembly Bill 2316, by Assemblymember Jesse Gabriel (D- Encino), would ban Red Dye No. 40, Yellow Dye No. 5, Yellow Dye No. 6, Blue Dye No. 1, Blue Dye No. 2 and Green Dye No. 3 and the food additive titanium dioxide.

The dyes have been found to cause neurobehavioral problems in some children, and titanium dioxide has been linked to DNA damage and immune system harm.

"California has a responsibility to protect our students from chemicals that harm children and that can interfere with their ability to learn," said Gabriel.

"As a lawmaker, a parent and someone who struggled with ADHD, I find it unacceptable that we allow schools to serve foods with additives that are linked to cancer, hyperactivity and neurobehavioral harms," he said. "This bill will empower schools to better protect the health and wellbeing of our kids and encourage manufacturers to stop using these dangerous additives."

Last year, Gabriel successfully authored, and Gov. Gavin Newsom signed into law, the California Food Safety Act, which banned potassium bromate, propylparaben, brominated vegetable oil and Red Dye No. 3 from food manufactured, delivered and sold in the state.

In 2021, the California Office of Environmental Health Hazard Assessment released a study finding that many food dyes and colorants, including the six dyes covered by A.B. 2316, are known to make some children vulnerable to behavioral difficulties and decreased attention.

"Many children rely on school meals as a source of their daily nutrition and calorie intake," said Tasha Stoiber, Ph.D., Environmental Working Group senior scientist. "Kids deserve wholesome foods that don't negatively impact their ability to learn, and parents deserve the confidence that the schools they're sending their kids to aren't serving them food that may harm them."

EWG and Consumer Reports are co-sponsoring A.B. 2316. The bill will next be heard and voted on by the California Senate.

Toxic chemicals

Thousands of chemicals are allowed for use in food sold in the U.S. Many of those the Food and Drug Administration has reviewed have not been reevaluated for decades, even when new science is available. For instance:

* Titanium dioxide, which has been linked to damage to DNA and harm to the immune system, hasn't been assessed since 1966. In 2022, the European Union prohibited it from use in food offered for sale, but it is still allowed in food sold in the U.S.

* Red Dye No. 40 has not been evaluated for health risks since 1971. Many studies show it may pose a risk to brain

development in children, hyperactivity and even cancer.

* Yellow Dye No. 5 has been approved for use since 1931. The FDA affirmed its use with good manufacturing practices in 1969.

* Yellow Dye No. 6 was approved for use in 1931, and the FDA reaffirmed its use in 1986.

* Blue Dye No. 1 has been approved for use since 1931. Its use was affirmed in 1969.

* Blue Dye No. 2 was last approved in 1983.

* Green Dye No. 3 has been allowed for use since 1931 and hasn't been reaffirmed since 1982.

"Why are foods with these toxic dyes being served in schools?" said Susan Little, EWG's senior advocate for California government affairs.

"We know they are harmful, especially to some children. We need to protect this vulnerable group from being exposed at school, a place where they eat meals and are expected to learn," Little said.

"We appreciate Assemblymember Gabriel's efforts to remove these harmful dyes and colorants from these products," she added.

Children have lower tolerance levels to chemical exposure than adults, and their developing bodies make them especially vulnerable.

"These dangerous dyes should not be allowed in foods sold in schools, because they put kids at risk for hyperactivity and other neurobehavioral issues," said Brian Ronholm, director of food policy at Consumer Reports.

"Removing these harmful dyes from school foods will protect the health and well-being of kids in California. Consumer Reports applauds Assemblymember Gabriel for introducing this critical food safety legislation," he added.

Consumers consistently rank food chemical concerns ahead of other food safety issues. But the FDA does not adequately regulate additives.

"The FDA continues to fail to keep us safe from harmful chemicals in our food," said Melanie Benesh, EWG's vice president of government affairs. "In the absence of federal leadership, states like California continue to step up to keep us safe from toxic chemicals in snacks and other food we and our families enjoy."

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The Environmental Working Group (EWG) is a nonprofit, non-partisan organization that empowers people to live healthier lives in a healthier environment. Through research, advocacy and unique education tools, EWG drives consumer choice and civic action.

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Founded in 1936, Consumer Reports has a mission to create a fair and just marketplace for all. Widely known for our rigorous research and testing of products and services, we also survey millions of consumers each year, report extensively on marketplace issues, and advocate for consumer rights and protections around safety as well as digital rights, financial fairness, and sustainability. CR is independent and nonprofit.

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Original text here: https://www.ewg.org/news-insights/news-release/2024/06/california-lawmakers-advance-bill-

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